

24NWCV02309 24NWCV02309

County: los-angeles

Division: Civil Law and Motion

Department: C

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LINETTE MARIE ZAMORA vs

ABC PROPERTY MANAGEMENT et al., Case No. 24NWCV02309

Trial in this premises

liability action is currently scheduled for October 21, 2026. On June 29, 2026, Defendants ANDERSON BALLARD PROPERTIES, INC. and THE ESTATE OF ANNE EWING RASSIOS separately filed and served by email motions for summary judgment, or in the alternative, summary adjudication as to the operative First Amended Complaint. To comply with the requirement that motions for summary judgment be heard no later than 30 days before trial (CCP § 437c, subd. (a)(3)), Defendants were required to file and serve their motions no later than June 30, 2026. Defendants did so, but the earliest dates available on the court's calendar to hear the motions were in early October 2026, beyond the 30 day deadline prescribed by the Code. (Feit Decl., ¶12.) Thus, Defendants apply ex parte for an order (1) to allow Defendants' Motions for Summary Judgment to be heard within 30 days of trial; or (2) to continue trial and all trial related dates until the first available date convenient for this Court and the parties after Monday, November 19, 2026, so that the Court may hear Defendants' Motions for Summary Judgment on October 6, 2026 and October 8, 2026. The ex parte application is GRANTED. A trial court may not refuse to hear a motion for summary judgment that is timely filed under CCP § 437c. (Sentry Ins. Co. v. Superior Court (1989) 207 Cal.App.3d 526.) Trial is ADVANCED from October 21, 2026 to today and CONTINUED to November 10, 2026 at 10:00 a.m. in Dept. SE-C. A Final Status Conference is set for October 27, 2026 at 10:00 a.m. in Dept. SE-C. All pretrial deadlines to correspond to the new trial date. Moving party to give notice.